

The Court later continued the hearing on Motion to Stay (and another pending motion, the Motion to Set Aside and Vacate Judgment of Dismissal on the Grounds of Undue Influence and Lack of Capacity filed April 14, 2025 by Michael Popov) to January 26, 2026, until after the resolution of a Motion to Set Aside the Appointment of Special Administrator in the Probate Case set to be heard on December 16, 2025.

At the hearing on January 26, 2026, this Court again continued the Motion to Stay until after the Probate hearing regarding the special administrator of the Estate of Nickolai Popov on January 27, 2026.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

The Court finds that it is necessary and appropriate to stay this case considering the Solano County Criminal Proceedings and the ruling by the Court in the Probate Case.

The **Court GRANTS the Motion to Stay.**

The Court set a status conference regarding the status of the Criminal Proceedings and the Probate Case on August 08, 2026, at 8:30 am in Department 34.

3. 9:00 AM CASE NUMBER: C24-02356
CASE NAME: MINKYU KIM, PHD VS. CG PHARMACEUTICALS, INC.
***HEARING ON MOTION IN RE: PRO HAC VICE OF PHILIP B ZIPIN ORG FILED ON 11/15/24**
FILED BY:
TENTATIVE RULING:

On December 29, 2025, defendant CG Pharmaceuticals, Inc. ("Defendant") filed an application for leave for attorney Austin D. Kim ("Counsel") to appear on its behalf *pro hac vice* in this matter (the "Pro Hac Vice Application"). The Pro Hac Vice Application was set for hearing on March 16, 2026.

However, the motion was withdrawn by Defendant's Notice of Withdrawal filed February 19, 2026.

Disposition

The Court finds and rules as follows:

1. The Pro Hac Vice Application is DROPPED from calendar as WITHDRAWN.

4. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
***HEARING ON MOTION IN RE: STAY**
FILED BY:
TENTATIVE RULING:

Introduction

Defendant Alexander Popov ("Defendant Popov") filed a Motion to Stay ("Motion to Stay") this

matter on July 31, 2026. The Motion to Stay was initially set for hearing on November 03, 2025.

As explained below, **Defendant Alexander Popov's Motion to Stay is denied.**

Procedural Background

On September 11, 2025, Counsel for Defendant Alexander Popov filed a status update for Probate Case No: P25-00516. The status update requested a continuance of a hearing date from the Probate Court for the Parties to coordinate mediation for a global settlement of all four related cases (C25-00229; C24-01939; P25-00516; and P25-00495) which was set to take place on October 15, 2025. The Probate Court in a minute order dated September 25, 2025, continued the Motion to Set Aside the Appointment of Special Administrator to December 16, 2025.

At the November 03, 2025, hearing the Court continued the hearing on Motion to Stay (and another pending motion) to January 26, 2026, until after the resolution of a Motion to Set Aside the Appointment of Special Administrator in the Probate Case set to be heard on December 16, 2025.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the hearing on January 26, 2026, this Court again continued the Motion to Stay until after the Probate hearing regarding the special administrator of the Estate of Nikolai Popov on January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

To avoid further continuances, the Court rules on the motion as follows.

Legal Standard

"[A] stay gives effect to the general rule that a court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (*People v. Bell* (1984) 159 Cal.App.3d 323, 329.) When considering a stay of proceedings, the court will consider "(1) the interest of the plaintiffs in proceeding expeditiously with . . . litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; [and] (4) the interests of persons not parties to the civil litigation . . ." (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885.) "[C]onvenience of the courts is best served when motions to stay proceedings are discouraged." (*Id.* at 888.)

Analysis

Basis for a Stay

Defendant Alexander Popov posits that a stay is proper under California Rules of Court, rule 3.151(f). (Motion at p. 7.) However, such rule does not exist. Assuming Defendant is referring to Rule 3.515, which addresses motions for stays, this rule is inapplicable here as it relates to stays requested in connection with proceedings being considered for coordination. (See also, Code Civ. Proc. § 404.5.) Here, there is no petition or request for coordination.

In any event, the Court, as the moving party also points out, has inherent authority to grant a stay of litigation. See *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ("Trial courts

generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.”).

This Motion Does not Prejudice any Party to the Special Administrator Dispute

This case is an interpleader matter where Plaintiff, a disinterested party who is a holder of Decedent Defendant Nickolai Popov’s money market account, is seeking to be discharged from liability for the account which is the subject of multiple adverse claims and deposit the funds with the Court to allow the adverse parties to resolve their claims regarding the subject account.

A stay would delay Plaintiff’s case and prejudice Plaintiff by forcing a uninterested party to remain in active court litigation when Plaintiff is actively taking the necessary steps to properly remove itself from a conflict between third parties.

On the other hand, Defendant Alexander Popov shows no prejudice to him or any other Defendant if Plaintiff’s interpleader proceeds. Significantly, adverse claimants cannot prevent a stakeholder from being discharged by claiming the funds should have been paid to them. (*Pacific Loan Mgmt. Corp. v. Superior Court* (1987) 196 Cal.App.3d 1485, 1489-1490 [“It is the stakeholder’s avowed disinterest in the interpleaded proceeds which gives him the right to interplead.”]). If a stay is later appropriate once the funds are interpled, the Court can reconsider if a stay is appropriate.

Denying the motion to stay would also allow the Court to keep its docket flowing free from an unnecessary stagnant case which would in turn promote judicial efficiency. On balance all of the equities cut in favor of denying the motion to stay.

Conclusion

As analyzed above, **Defendant Alexander Popov’s Motion to Stay is denied.**

5. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
*HEARING ON MOTION IN RE: SUBSTITUTION OF PARTY FILED BY UMPQUA BANK, AN OREGON
STATE-CHARTERED BANK
FILED BY:
TENTATIVE RULING:

Introduction

Plaintiff Umpqua Bank (“Plaintiff”) filed a Motion for Substitution (“Motion For Substitution”) on this matter on May 21, 2025. The Motion to Stay was initially set for hearing on August 11, 2025.

Procedural Background

At the August 11, 2025, hearing, this Court was inclined to grant Plaintiff Umpqua Bank’s motion to substitute Michael Popov, in his capacity as Special Administrator of the estate of Nickolai Popov, in place of deceased defendant Nikolai Popov, but continued the hearing to November 03, 2025, out of an abundance of caution to await the outcome of the Probate Court hearing regarding the special administrator scheduled for October 15, 2025..

On September 11, 2025, Counsel for defendant Alexander Popov filed a status update for Probate Case No: P25-00516. The status update requested a continuance of a hearing date from the Probate Court for the Parties to coordinate mediation for a global settlement of all four related cases (C25-